

Tentative Rulings for July 29, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO FORM INTERROGATORIES
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO PRODUCTION OF DOCUMENTS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL FURTHER ANSWERES/RESPONSES TO REQUEST FOR ADMISSIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR ADMISSIONS, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTER TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: Plaintiff's Motions to Compel Responses to Form Interrogatories, Production of documents, and Special Interrogatories (Set One) are granted.

As to Plaintiff's Motion to Compel Requests for Admissions, it is denied.

As to Sanctions, it is denied.

CCP §2030.290(b) provides that if a party fails to respond to an interrogatory request “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (CCP §2030.290.)

The declaration of City’s counsel reflects that responses to the discovery were not served. Further, the meet and confer letter attached to the declaration reflects that after the alleged responses were mailed, City was inquiring when responses would be provided, which validates the City’s position that responses were never received. The opposition to the motion fails to provide any evidence to the contrary. Accordingly, the court grants the motion to compel responses to Special Interrogatories (Set One) numbers 1 – 35.

There is no provision in the discovery code for compelling a party to respond to RFAs, rather, the code provides that if the party to whom the requests are directed fails to timely respond, the “requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction....” (CCP §2033.280(b).) Nor does Defendant cite any specific provision that gives this court authority to compel response to RFAs. Rather, Plaintiff’s only recourse was a motion to deem admissions admitted, pursuant to CCP §2033.280, which is cited by Plaintiff in its motion.

SANCTIONS

CCP §2030.290(c), provides in pertinent part that “[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2030.290(c).) Here, City failed to file a reply (although there is no Proof of Service indicating the opposition was served on City) addressing Defendant’s allegations that responses were served. Therefore, the court concludes that other circumstances make the imposition of a sanction unjust.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504921	CORONA NORCO UNIFIED SCHOOL DISTRICT vs SCHINDLER ELEVATOR CORPORATION	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenors Michele Adkins and Donna Penaranda’s Motion for Leave to Intervene is granted; Intervenors must file their Complaint in intervention within 20 days of this ruling.

Labor Code §3853 provides that if either the employee or the employer brings a workers' compensation subrogation action against a third person, "the other [employee or employer] may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently." (Labor Code §3853.)

A complaint in intervention filed by an employee is timely even when filed after the expiration of the statute of limitations if the employers complaint was filed within the applicable limitations period. (See *Home Ins. Co. v. Southern Cal. Rapid Transit District* (1987), 196 Cal.App.3d 522). Intervenors assert that Plaintiff Corona Norco Unified School District filed their complaint within the statute of limitations.

A motion to intervene must be accompanied by a proposed complaint in intervention. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) §2:443.) Intervenors properly submitted their proposed complaint in intervention alleging a single cause of action for negligence against Defendant Schindler arising out of the same injuries at issue in Plaintiff's subrogation action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506170	QUTAMI vs ALHARBI BROTHERS, INC.	DEMURRER ON 2ND AMENDED COMPLAINT
CVRI2506170	QUTAMI vs ALHARBI BROTHERS, INC.	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: Defendant Alharbi Brothers, Inc.'s Demurrer is sustained in its entirety with 20 days leave to amend.

Defendant Alharbi Brothers, Inc.'s Motion to Strike is granted as to prayer only; denied as to the remainder.

REQUESTS FOR JUDICIAL NOTICE

Defendant requests judicial notice of: (1) The Order Granting Petition to Confirm Arbitration Award and Entry of Judgment, entered on 3/17/25, in Alharbi Brothers, Inc. v. Corona Town Farmers Market, Inc. et al. (CVRI 2300681) (RJN Ex. A); and (2) the Cross-Complaint in *Fruiticana, Inc. v. Ahmad F. Qutami et al.* (CVRI 2404120) (*Id.*, Ex. B.) Both are court records. Evid. Code section 452(d).

DEMURRER

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly

pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A breach of contract cause of action requires: (1) a contract, (2) performance by plaintiff under the contract or excuse from performance, (3) breach of the agreement by the defendant, and (4) an injury to plaintiff due to the breach. (*Abdelhamid v. Fire Insurance Exchange* (2010), 182 Cal.App.4th 990, 999.) “[T]he existence of a contract is a necessary element to an action based on contract, regardless whether the plaintiff seeks specific performance or damages for breach of contract.” (*Roth v. Malson* (1998) 67 Cal.App.4th 552, 557.) Offer, an unqualified and absolute acceptance, and consent are all required for the formation of a contract. (*Id.*; *Alexander v. Codemasters Group Limited* (2002) 104 Cal.App.4th 129, 141.) “To form a contract, an ‘offer must be sufficiently definite . . . that the performance promised is reasonably certain.’” (*Alexander, supra*, 104 Cal.App.4th at 141.)

In the present case, Defendants argue that no enforceable oral contract was formed to split the \$1.7 million arbitration award. They argue that the SAC describes only an oral agreement to co-manage a property that was “contingent upon successful eviction” of a tenant (SAC ¶ 15), and that eviction never occurred.

Contract Formation

The SAC alleges that in March 2022, Plaintiff Qutami and Defendant Alharbi Brothers entered into a verbal agreement to become business partners under a “50/50 ownership arrangement... contingent upon successful eviction of Mr. Ali.” (SAC ¶ 15.) The primary purpose of this partnership was to “jointly take over and manage” the supermarket and “divid[e] all profits on a 50/50 basis.” (*Id.*, ¶¶ 21, 24.) However, the SAC also admits that “a procedural error in the service of process caused the eviction case to be dismissed,” and that “the landlord ultimately declined to refile.” (*Id.*, ¶ 15.)

In contract law, “a condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises.” (*Realmuto v. Gagnard* (2003) 110 Cal.App.4th 193, 199.) In other words, the contractual duty subject to a condition precedent does not arise until the condition occurs. (*Ibid.*) Here, since the eviction case is dismissed, the condition precedent was never satisfied, and that the agreement to co-manage or split operational profits never came into being.

Plaintiffs counter that there is an alleged fallback provision. They argue that in the event that the eviction failed, Defendant “would bring an action for specific performance and/or damages.” (SAC ¶ 25.) The SAC further alleges that Defendant performed this fallback term by prosecuting the arbitration action. (*Id.*, ¶ 26.) However, the agreement terms set forth in the SAC (*Id.*, ¶¶ 21-25) contain no agreement to split the arbitration

proceeds. The statement in paragraph 27 that the 50/50 arrangement “included any funds collected from the arbitration” (*Id.*, ¶ 27) is unclear and is contradicted by the specific terms of the agreement as pled under paragraph 24, which states that the 50/50 split is limited to the profits arising from the “co-manage[ment] and rent [of] the property” (*Id.*, ¶ 24.) Here, the oral agreement as pled is not sufficiently clear to show an obligation to divide the arbitration award.

A contract also requires consideration. (Civ. Code, § 1550.) Consideration must “be given in exchange for the promise. Past consideration cannot support a contract.” (*Passante v. McWilliam* (1997) 53 Cal.App.4th 1240, 1247.) Here, as pled, the SAC alleges that “[f]ollowing the award,” the parties “agreed that the arbitration award should be split equally.” (SAC ¶ 16.) As framed, the assertion is incomplete as to consideration. In opposition, Plaintiff Qutami counters that he provided “ongoing assistance, financial analysis, and evidentiary support for the litigation-services beyond the scope of the original listing agreement,” which constitutes sufficient consideration. However, it appears that these litigation support efforts were performed *prior* to the post-arbitration award discussion. In other words, the alleged agreement to divide the arbitration award appears to rest on past consideration. Past consideration cannot support a contract.

The court need not reach the other arguments, such as the statute of frauds, illegality, and public policy.

Standing

“Every action must be prosecuted in the name of the real party in interest.” (Code Civ. Proc., § 367.) The SAC alleges that the verbal agreement was entered into solely between “plaintiff QUTAMI and defendant ALHARBI BROTHERS.” (SAC ¶ 21.) Plaintiff Pacific Premier is not alleged to be a party to the agreement or a beneficiary. Accordingly, Pacific Premier lacks standing to sue. The court sustains the demurrer as to Pacific Premier on this additional independent ground.

MOTION TO STRIKE

A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (Code Civ. Proc., § 436.) The grounds must appear on the face of the pleading or judicial notice. (*Id.* at § 437.)

Defendant moves to strike attorney’s fees (prayer ¶ 3), counsel allegations (¶¶ 15, 18, 20), and exhibit characterization (¶ 17).

“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties.” (Code Civ. Proc., § 1021.) The SAC alleges an oral agreement and pleads no terms for attorney’s fees. Nor did it plead any statutory fee provision. The prayer for fees is unsupported. The court grants the motion to strike prayer ¶ 3.

4.

CASE #	CASE NAME	HEARING NAME
RIC2000784	IWANAKA vs DOI	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiffs Kimiko Iwanaka and George Tetsuo Doi's Motion for Attorney's Fees is granted in the amount of \$104,692.75. As for costs, the proper procedure is a memorandum of costs. (Cal. R. Ct., rule 3.1700.)

The court has reviewed the resubmitted billing statements and reduce/remove the following entries:

- 5/3/21: Preparation Amended Notice of Deposition. Scan and email to opposing counsel. Contact court reporter. This is clerical. The court removes the paralegal's entry of 1.5 hours.
- 5/12/21: Preparation for deposition of Carole Walsh – copy records. This appears to be clerical. The court removes the paralegal's entry of 7.7 hours.
- 10/8/21: Email large QuickBooks backup file to client; Preparation of notice of continuance of taking deposition; e-service on opposing counsel. This appears to be clerical. The court removes the paralegal's entry of 1.5 hours.
- 1/31/22-2/1/22: Counsel spent 19.8 hours to prepare a reply brief. The court reduces counsel's time to 8.0 hours as more reasonable.
- 2/25/22: Email copy of notice of hearing to opposing counsel is clerical. The court removes the paralegal's entry of .25 hours.
- 3/24/22-3/31/22: Preparation of request for dismissal is excessive at 1.5 hours. The court reduces the paralegal's entry to .5 hours.
- 1/19/24: Preparation of proof of service and mail copy is clerical. The court removes the paralegal's entry of .5 hours.

Thus, the court reduces counsel's time by 11.8 hours and the paralegal's time by 12.45 hours. This equals \$5,310 (11.8 x \$450) and \$1,867.50 (12.45 x \$150). The court awards \$104,692.75 in fees.

5.

CASE #	CASE NAME	HEARING NAME
RIC2002846	CITY OF CORONA vs CERCA TROVA RESTAURANT GROUP HOLDINGS INC	MOTION TO REVERT TO ORIGINAL DATE OF VALUE

Tentative Ruling: Hearing off Calendar pursuant to Plaintiff and Defendants' declarations in lieu of reply filed 7/24/26.

6.

CASE #	CASE NAME	HEARING NAME
UDCO2600405	AMFP VII ESPLANADE LLC vs GOMEZ	MOTION FOR SUMMARY JUDGMENT ON UNLAWFUL DETAINER

Tentative Ruling: Hearing is vacated. California Rules of Court §8.25(a) (1) provides: Before filing any document, a party must serve one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule. CCP §437c (2) provides the timeline on Motions for Summary Judgment/Adjudication, and that the motion and supporting papers shall be served on all other parties to the action.

Here, Plaintiff's Motion for Summary Judgment was served on 7/1/26 on Defendant. However, Defendant is represented by counsel, Christian De Olivas, who was not served.